

Trade-In Terms and Conditions

Article 1: Introduction and Services Offered

1.1 Who We Are:

Welcome to REGEN, a company that purchases used electronic devices from individuals and resells refurbished products to consumers and professional refurbishers.

We have now also entered into an arrangement with Muller and Phipps (Private) Limited (the “**Distributor**”), whereunder we will provide Trade-In Services to the customers of Samsung Handheld Products, who wish to buy a new device from Samsung E-store (<https://www.samsung.com/pk/>) and trade-in their old device (the “**Trade-in Services**”).

By using our Trade-In service, you agree to comply with these Terms and Conditions.

1.2 Our Role:

In the process of Trade-In Services as referred to above, REGEN acts as the direct buyer of your used electronic device (“**Old Device**”). We are responsible for the said transaction between you as the seller and REGEN as the buyer.

We are also responsible for obtaining your ordered Samsung mobile phone (the “**Ordered Product**”) from the Distributor and providing it to you.

1.3 Purpose of These Terms:

These Terms and Conditions outline the rules and procedures for using the REGEN Trade-In Services. They govern the relationship between you and REGEN regarding the sale of your Old Device to us and the delivery of the Ordered Product to you.

Article 2: Definitions

- “**Individual**” or “**You**” means the person using the REGEN Trade-in Services through the Platform to sell their Old Device to REGEN and buying the Product.
- “**Platform**” means the REGEN interface integrated on Samsung E-store (<https://www.samsung.com/pk/>) through which individuals can avail the Trade-In Services.
- “**REGEN**” means REGEN (PRIVATE) LIMITED, i.e., which is the entity responsible for providing the Trade-In Services, including the purchase of the Old Device from the Individuals and delivering the Ordered Product to them.

Article 3: Eligibility to Use the Trade-In Service

3.1 Age Requirements:

The Customer using the Trade-In service must be at least 18 years old. Those under 18 may use the Trade-In service only with the involvement of a parent or legal guardian and in such case the contract will be deemed to be with such parent or legal guardian.

3.2 Information Requirements:

You must provide accurate personal information, including:

- Full name
- Physical address of Lahore
- Telephone number
- Copy of their National Identity Number (NIC)

If your transactions for the Trade-In Service are for a value of more than Rs. 1,000,000/- per calendar/tax year, You agree to provide your National Tax Number (NTN).

Failure to provide accurate information may result in suspended payouts or cancellation of the Order.

Article 4: Eligible Products for Trade-In

As part of the Trade-In Service, REGEN accepts Old Devices of the following brands (**"Accepted Devices"**):

- Samsung
- Infinix
- Apple
- Xiamoi

REGEN shall accept only those models of the Accepted Devices which are less than two (02) years old.

The age of the Accepted Device shall be reckoned from the date on which the relevant device model was launched by the relevant manufacturer of the Accepted Devices.

Article 5: Information Required for Old Device

You must describe your Old Device's nature and condition as accurately as possible, following our pricing guidelines.

In particular, You must provide the following information (**"Specifications"**):

- **Product Description:** The type and model of the Old Device You wish to sell.
- **Brand:** Any of the Accepted Devices.
- **Model Specifics:** Specific features (e.g., storage capacity, color).
- **Condition:** The current state of the Old Device (e.g., excellent, good, fair).
- **Custom Clearance:** If applicable, specify if the Old Device is custom paid (PTA Approved).

Article 6: Trade-In Process

6.1 Initial Offer:

Based on the information You provide, as per the requirements mentioned in Article 5, REGEN will generate an initial offer for your Old Device (the “**Initial Offer**”).

The Initial Offer shall reflect the estimated value based on the description of your Old Device, provided by You on the Platform, and our pricing criteria.

6.2 Offer Acceptance and Payment:

If You accept the Initial Offer, You shall be redirected from the Platform to the checkout page of Samsung E-store, where the following options will be available to complete the payment process of the Product:

1. Cash on Delivery (COD)

However, please note that while your acceptance of the Initial Offer allows You to proceed with the Trade-In process, this does amount to a finalized sale.

The finalising of the sale is contingent upon REGEN’s inspection and verification of the product’s condition, at the time of delivery of the Ordered Product to You (the “**Delivery**”).

Upon Delivery, if your Old Device does not conform to the Specifications submitted by You on the Platform, then REGEN shall be entitled to recall the Initial Offer and a new offer shall be offered on spot in accordance with our pricing criteria (“**Second Offer**”). REGEN shall also be entitled to reject the Old Device and inform You that your order stands cancelled.

If You accept the Second Offer, then the payment process shall be as follows:

1. If You opted to pay for the Product via COD, then You shall pay the final price as per the Second Offer in full at the time before delivery.
2. If You opted to pay for the Product via Bank Transfer and have already made partial payment, then You shall pay the differential amount of the Initial Offer and the Second Offer

You shall also be required to sign an acknowledgement of the Delivery.

Upon Delivery, if you open the Ordered Product packaging, it will be deemed that You have accepted the Delivery. No claims in this regard shall lie against REGEN, the Distributor, or Samsung.

Article 7: Failure to Comply or Pay

If You fail to provide required information as per Article 6.1, the Trade-In Process will be terminated, and no transaction will occur.

If You refuse to pay the amounts payable under the Initial Offer or the Second Offer (as the case may be), then your order shall stand cancelled. REGEN shall return the Ordered

Product to the authorized distributor of Samsung (the “**Authorized Distributor**”) who shall then refund any advance payments made by You in the course of its business. Your recourse in this regard will only be against the Authorized Distributor.

Article 8: Liability

8.1 Service Liability:

REGEN strives to ensure the availability of the Trade-In Services but may suspend or limit access for maintenance or upgrades.

REGEN shall not be liable for any damages resulting from service interruptions.

8.2 Product Liability:

REGEN is responsible for the Delivery.

REGEN is also responsible for any transactions directly between You and REGEN.

Samsung or its distributors shall not be liable with respect to any aspect of the Trade-In Services. The ordinary terms of sale of the Samsung E-Store apply to the sale of the Ordered Product.

8.3. Your Liability

You shall always remain liable for ensuring that you have good title to the Old Device and that you are competent to sell the same to REGEN.

Old Device once sold to REGEN may not be returned.

You shall remain responsible for backing up and wiping off any data on your OLD Device before handing it over. REGEN shall not be liable for any data left on the Old Device.

Article 9: Dispute Resolution

9.1 Cooperation:

Both parties agree to cooperate in good faith to resolve any disputes or issues arising from the trade-in process amicably.

9.2 Arbitration Agreement:

Any disputes that cannot be resolved informally or through small claims proceedings shall be referred to binding arbitration on an individual basis, as outlined below.

9.3 Arbitration Rules:

Arbitration shall be conducted in accordance with the applicable laws of Pakistan, following the Arbitration Act, 1940, or any subsequent legislation governing arbitration in Pakistan.

The proceedings shall be conducted in Urdu or English, as mutually agreed by the parties.

Each party shall bear its own legal costs, while the fees and costs of the arbitration tribunal shall be shared equally unless otherwise directed by the arbitrator. **Contact Information**

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